



CHAPTER 72.

An Act to give temporary power to Government Departments to extend the time limited for the performance of duties or the exercise of powers under special Acts. A.D. 1915.

[29th July 1915.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1.—(1) Where the time within which a duty is to be performed or a power may be exercised under any special Act is limited, an application may be made to the appropriate Government Department for an order under this Act extending that time ; but only in cases where the time is due to expire within twelve months of the date of the application.

Extension of
time limited
under special
Acts.

(2) An application may be so made by or on behalf of the person by whom the duty is to be performed or by whom the power may be exercised, or by or on behalf of any other person appearing to the Department to be interested in the extension of time for the performance of the duty or the exercise of the power.

(3) If on any such application the Department are satisfied that, in the circumstances of the case, the time in respect of which the application is made should be extended, they may make an order so extending the time, and the special or other Act by which the time is limited shall, as respects the time extended by the Order, have effect as if the time as so extended were substituted for the time specified in the Act :

Provided that, without prejudice to the making of any further order, no time shall be extended under any such order for more than a year.

An order shall have full effect notwithstanding that the time to which it relates has expired, if the application upon which the order is made was made before the time expired.

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(4) Before dealing with any application, the Department may require the applicant to publish any notices which the Department direct him to publish, and, in any case where it appears to the Department necessary, to give notice to such persons as the Department direct, and may give any person appearing to the Department to be interested in the question of the extension of time an opportunity of representing his views to the Department in such manner as the Department think fit.

(5) An order made by a Government Department under this Act shall be published in the London, Edinburgh, or Dublin Gazette, as the case requires, and shall not, after it is made, be questioned on the ground that it was not made by the appropriate Department; and if any question arises as to the Department to which an application under this Act should be referred, that question shall be determined by the Treasury, and their decision on the matter shall be conclusive.

Interpretation,
short title, and
duration.

2.—(1) In this Act the expression “special Act” means a local or private Act, and includes any public Act of a local or private nature, and any certificate or order having the force of an Act or confirmed by Act.

(2) This Act may be cited as the Special Acts (Extension of Time) Act, 1915.

(3) This Act shall have effect only where the application under the Act is made during the continuance of the present war or a period of six months thereafter.

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FOR

FREDERICK ATTERBURY, Esq., C.B., the King's Printer of Acts of Parliament.